



Philosophy and Ethics of Political Violence ethics notes

Philosophy and ethics of political violence (Vrije Universiteit Amsterdam)



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Lecture 1:

Guest lecture Azza Karam on Youtube:

What's the role of religion?

World Council of Churches more important than rooms full of presidents and prime-ministers

Christ's love want meant only for people of Christian faith.

Work together from different faith institutions to spread more of Christs love, serve everyone.

Political institutions cannot serve all the needs of everyone.

Uphold the consciousness that war is not an option. Demonstrate this together.

Dangers of religions being misused by politicians.

Exclusivist, inclusivist, pluralist

The role of religious actors in peacebuilding

-> The prohibition to take lives of others

- Judaism:
 - o You shall not murder/kill
 - o Do not seek revenge
or bear a grudge against anyone among your people, but love your neighbour as yourself. I am the Lord.
- Christianity
 - o Love the Lord your God
with all your heart and with all your soul and with all your mind.
And the second is like it:
Love your neighbour as yourself
All the law and the Prophets hang on these two commandments
- Islam
 - o The prophet Muhammad said:
None of you has faith
until you love for your neighbour what you love for yourself

The prohibition to take lives of others:

- UN-Charter
- Everyone has the right to life, liberty and security of person

Definition of Ethics: A system of accepted beliefs that control behaviour, especially such a system based on morals

-> every religion provides a system based on morals

-> theological ethics

Definition of Religion:

Emil Durkheim: "a unified system of beliefs and practices relative to sacred things, that is to say things set apart and forbidden - beliefs and practices which unite into one single moral community called a church, all those who adhere to them."

Max Lynn Stackhouse: "a comprehensive worldview or 'metaphysical moral vision' that is accepted as binding because it is held to be in itself basically true and just even if all dimensions of it cannot be either fully confirmed or refuted"

Faith-based organizations: organization whose values are based on faith and/or beliefs, which has a mission based on social values of the particular faith, and which most often draws its activists (leaders, staff, volunteers) from a particular faith group. The faith to which the organization is relating to does not have to be academically classified as religion. The term ... is more inclusive than the term „religious organization“ as it refers also to the non-congregation faith beliefs... Currently, this terminology is widely used in governmental, inter-governmental, and non-governmental settings.”

The secularization thesis

- The significance of religion in a globalized world will diminish in direct relation to increase in education and prosperity
- The triumph of modernity can be linked to the separation of „church and state“ (religion and government) which secularizes the public sphere while enabling religion to wither (Western Europe) or flourish in the private sphere (United States).

Lecture 2:

Just War tradition

When is it justifiable to go to war?

Michael Walzer – The triumph of just war theory

“Just War” Theory

“Just war theory

refers to the body of thought,
arising primarily out of the Western Christian tradition,
which addresses the questions of when war may be justified
(referred to as *ius ad bellum*)

And what actions are justifiable during war (*ius in bello*),
and in some modern manifestations also
what actions are morally necessary after war (*ius post bellum*).”

->When and how wars are fought

“The Just War tradition

is a two thousand year old conversation about the legitimacy of
war...(which) provides
a justificatory framework;
a meaningful language that soldiers and politicians use to legitimize
their actions and
that friends, foes and bystanders alike use to evaluate those claims”.
Alex Bellamy, 2006

->The Morality of Warfare?

“...even if we believe that war is an
inevitable feature of the human condition,
as human beings we are also mandated
not to let it slip totally free of the moral (i.e.),...

we are not to lose altogether the vestiges of 'humanity'.”
Mark Evans, 2009

Pacifism ←—————→ Realism (militarism)

Just war theory (JWT)

“...it is very much the language of Western just war theory
which informs many contemporary debates about war
in the international arena and
which lies behind many of the principles of international law.

Just War – The Constantinian Shift

1st-3rd C: Persecution of Christian Faith

312-313: Christian Faith tolerated by the empire

325-381: Christianity becomes the dominant

(Bishop) Augustine:

- Peace is not “the absence of war”,
but rather the “tranquillity of order”
- War can be the “lesser evil” (peace as goal!)
- Primary justification: defence of others
- The intention matters

Thomas Aquinas:

- Failing to protect others is incompatible with justice
- The “doctrine of double effect”
 - o If A and B have been the effects of your action, but only your intention had been A,
you are not responsible for B
->intention matters (->collateral damages)
- First one to develop a system of reasoning (legitimate authority, just cause, right intent –
pursue peace)

(Bishop) Francisco de Vitoria:

- Spanish Roman Catholic philosopher & theologian, and jurist
- JWT: lenses to assess the Spanish colonization

Hugo Grotius:

- Dutch jurist, humanist, and theologian
- “Secularization” of JWT (articulation of the criteria)

"Just War" Criteria

- *Ius ad bellum*
 - *iusta causa* (justified reason)
- rules to wage war*
 - *recta intentio* (justified intention, motivation)
 - *legitima potestas* (legitimate authority)
 - *ultima ratio* (last resort)
 - reasonable chance of success
- *Ius in bello*
 - proportionate means
- Regulate conduct*
 - differentiation between combatants and non-combatants
- in war*
 - prohibition of *mala in se* (means, that are never justifiable)

Lecture 3:

- Ius post bellum
 - proportionality and publicity
 - > reasonable and public peace settlement
 - rights vindication
 - > secure basic rights that were violated in the first place
 - discrimination
 - > civilians are entitled to reasonable impunity
 - punishment
 - > proportionate punishment
 - compensation
 - > financial restitution mandated
 - rehabilitation
 - > reform decrepit institutions

Are the criteria of ius ad bellum and ius in bello realistic?

If any of these criteria is lacking, the war can be called unjust

- War is unjust unless its otherwise proven
- But after 9/11 2001: Global War on Terror
- ➔ Renaissance of Just War Theory

When is it justifiable to go to war?

- Perspective and location matter
 - When and how can we restrain evil and protect the innocent?

Responsibility to Protect (P2P)

- "Do not kill"
- "Love your neighbour"
- = 'commandments' in nearly all religions/worldviews
- ➔ Responsibility to protect the 'neighbour', when they are under threat

Concept development by the International Commission on Intervention and State Sovereignty (ICISS)

Shift of Perspectives:

1. From sovereignty of the government of the nation state,
➔ Towards protection of populations under direct threat
2. From perspective of those who might potentially intervene
➔ To the integrity of people in need
3. From the power of decision held by the individual nation state
➔ To the international community acting in solidarity
4. From a focus on military action
➔ To a broad range of peace-building efforts]

Lecture 4:

From Just War to Just Peace

"si vis pacem para bellum"

"If you want peace, prepare for war"

"si vis pacem para pacem"

"if you want peace, prepare for peace"

"si vis pacem cole iustitiam"

"if you want peace, cultivate for justice"